



CHAPTER clvii.

An Act to authorise the North British Railway Company to
construct certain new railways to raise additional capital
and for other purposes. A.D. 1905.
—
[4th August 1905.]

WHEREAS it is expedient that the North British Railway Company (in this Act called "the Company") should be authorised as in this Act provided—

To make and maintain in the parish of Renfrew in the county of Renfrew—

(1) A railway (in this Act called "Railway No. 1") commencing by a junction with the Company's Glasgow Yoker and Clydebank Railway and terminating by a junction with Railway No. 7 authorised by the North British Railway (General Powers) Order Confirmation Act 1903 ;

To make and maintain in the parish and burgh of Falkirk in the county of Stirling—

(2) A railway (in this Act called "Railway No. 2") from the Company's railway at Dalderse Goods and Mineral Depôt to the Falkirk Iron Works ;

(3) A railway (in this Act called "Railway No. 3") from a point on the said Railway No. 2 one hundred and seventy yards or thereabouts east of the junction of Thornhill Road and Dalderse Avenue to a point about ten yards on the north side of Dalderse Avenue and one hundred and fifty yards south-east of Kersehill House ;

(4) A railway (in this Act called "Railway No. 4") from a point on the said Railway No. 2 about two hundred and fifty yards east of the junction of Thornhill

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Road and Dalderse Avenue to a point about five yards on the north side of Dalderse Avenue and one hundred and ten yards south of Kersehill House ;

To make and maintain in the parishes of Markinch and Dysart in the county of Fife—

(5) A widening of the Company's Dunfermline and Thornton Railway ;

To acquire additional lands for the purposes of their undertaking and for the purposes of the West Highland Railway Undertaking ; and

To hold certain lands already acquired by them :

And whereas it is expedient—

(1) To further extend the time limited by the North British Railway (General Powers) Act 1900 as extended and limited by the North British Railway (General Powers) Order Confirmation Act 1903 for the compulsory purchase of lands and for the completion of Railways Nos. 1 2 3A 4A 5A 6A and 7 by the said Act of 1900 authorised ;

(2) To extend the time limited by the North British Railway (General Powers) Act 1902 for the compulsory purchase of certain lands described in subsection (A) of section 5 of that Act ;

(3) To confirm and sanction a contract of excambion between the Company and the provost magistrates and councillors of the burgh of Bathgate with reference to certain lands at or near Bathgate Lower Station and also a contract of excambion between the Company and Alexander Cochran of Ashkirk with reference to certain lands at or near Wallyford level crossing in the parish of Inveresk and county of Edinburgh :

And whereas plans and sections showing the railways and widening by this Act authorised to be constructed and plans of the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the principal sheriff clerks of the several counties within which the said railways

and widening will be constructed and those lands are situate which plans sections and books of reference are in this Act respectively referred to as the deposited plans sections and books of reference : A.D. 1905.

And whereas by the Burntisland Harbour Act 1881 the Burntisland Harbour Commissioners (in this Act called "the Burntisland Commissioners") were incorporated and the harbour undertaking property rights powers authorities duties and liabilities with respect to the harbour which prior to the passing of that Act were vested in or belonged to the town council of Burntisland were transferred to and vested in the Burntisland Commissioners :

And whereas the Burntisland Commissioners have completed the construction of the new wet dock and other works authorised by the Burntisland Harbour Act 1896 :

And whereas the railway of the Company forms the only access by railway to the said harbour of Burntisland :

And whereas by the Pier and Harbour Orders Confirmation Act 1870 (No. 3) and subsequent Acts the Burntisland Commissioners and their predecessors have from time to time been authorised to borrow for the purposes of the said harbour the sum of six hundred thousand pounds which powers have been reduced to five hundred and ninety-six thousand four hundred and forty-six pounds and sixpence by repayment out of the sinking fund of three thousand five hundred and fifty-three pounds nineteen shillings and sixpence of the borrowed money :

And whereas by the North British Railway Act 1873 and subsequent Acts the Company have from time to time been authorised to lend to the Burntisland Commissioners for the purposes of the said harbour the sum of six hundred and twenty thousand pounds which powers have been reduced to six hundred and sixteen thousand four hundred and forty-six pounds and sixpence by repayment of the said sum of three thousand five hundred and fifty-three pounds nineteen shillings and sixpence :

And whereas at thirtieth September one thousand nine hundred and four the total amount of the loans by the Company to the Burntisland Commissioners was five hundred and ninety-nine thousand one hundred and seventy pounds nineteen shillings and one penny :

And whereas at thirtieth September one thousand nine hundred and four the total expenditure of the Burntisland

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A.D. 1905. — Commissioners on capital account was six hundred and forty-eight thousand four hundred and eighty-eight pounds ten shillings and twopence of which sum the whole has been paid excepting two items of forty-one thousand five hundred and forty-seven pounds fourteen shillings and fourpence and seven thousand seven hundred and eighty-one pounds nineteen shillings amounting together to the sum of forty-nine thousand three hundred and twenty-nine pounds thirteen shillings and fourpence and that said capital expenditure of six hundred and forty-eight thousand four hundred and eighty-eight pounds ten shillings and twopence is fifty-two thousand and forty-two pounds nine shillings and eightpence beyond the borrowing powers reduced as aforesaid of the Burntisland Commissioners and thirty-two thousand and forty-two pounds nine shillings and eightpence beyond the amounts authorised to be lent to them by the Company reduced as aforesaid conform to the accounts of the Burntisland Commissioners for the year ending thirtieth September one thousand nine hundred and four and the Burntisland Commissioners will in the immediate future incur further capital obligations and it is expedient that the Burntisland Commissioners should be authorised to borrow further money and also that the Company should be empowered to advance additional money on loan to the Burntisland Commissioners :

And whereas it is expedient that the Company should be authorised to raise additional capital by the creation and issue of new ordinary or preference shares or stock or by mortgage or debenture stock or any of them for any of the said purposes and for the general purposes of their undertaking :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may for all purposes be cited as the North British Railway (General Powers) Act 1905.

Incorporation of general Acts.

2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the

Railways Clauses Act 1863 and the provisions of the Companies A.D. 1905.
Clauses Consolidation (Scotland) Act 1845 with respect to the
several matters following (that is to say):—

- The distribution of the capital of the Company into shares ;
- The transfer or transmission of shares ;
- The payment of subscriptions and the means of enforcing the payment of calls ;
- The forfeiture of shares for non-payment of calls ;
- The remedies of creditors of the Company against the shareholders ;
- The borrowing of money by the Company on mortgage or bond ;
- The conversion of the borrowed money into capital ;
- The consolidation of the shares into stock ;
- The making of dividends ;
- The giving of notices ; and
- The provision to be made for affording access to the special Act ;

and Parts I. II. and III. of the Companies Clauses Act 1863 (relating respectively to cancellation and surrender of shares to additional capital and to debenture stock) as amended by subsequent Acts are (except where expressly varied by or inconsistent with this Act) incorporated with and form part of this Act.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction : Interpretation.

The expression "the railways" means the new railways and the widening by this Act authorised ;

The expression "the Burntisland Commissioners" means the Burntisland Harbour Commissioners incorporated by the Burntisland Harbour Act 1881 ;

The expression "the town council" means the provost magistrates and councillors of the Royal burgh of Burntisland ;

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A.D. 1905. The expression "the Burntisland Harbour Acts" means the Burntisland Harbour Acts 1870 to 1896.

In the Acts incorporated herewith the word "schoolmasters" means clerks of parish councils or persons acting as such clerks.

Power to
make new
railways and
a widening.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the new railways and widening hereinafter described with all proper stations sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes.

The new railways and widening hereinbefore referred to and authorised by this Act are—

In the county of Renfrew—

- (1) A Railway No. 1 3 furlongs in length wholly situate in the parish of Renfrew commencing by a junction with the Company's Glasgow Yoker and Clydebank Railway at a point three hundred and fifteen yards or thereabouts measuring along the said railway in a westerly direction from the bridge carrying Crescent Road Scotstounhill over the said railway and terminating by a junction with Railway No. 7 authorised by the North British Railway (General Powers) Order Confirmation Act 1903 at a point one hundred and thirty yards or thereabouts measuring in a westerly direction from the commencement of the said Railway No. 7 :

In the county of Stirling—

- (2) A Railway No. 2 5 furlongs 5·55 chains in length wholly situate in the parish and burgh of Falkirk commencing by a junction with the Company's railway at Dalderse Goods and Mineral Depôt at a point one hundred and sixty-five yards or thereabouts measuring in a northerly direction from Wallace Street level crossing and terminating in the Falkirk Iron Works on the south side of the Forth and Clyde Canal three hundred and ten yards or thereabouts east of Bainsford Bridge ;

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- (3) A Railway No. 3 4·45 chains in length wholly situate in the parish and burgh of Falkirk commencing by a junction with the said Railway No. 2 at a point one hundred and seventy yards or thereabouts measuring in an easterly direction from the junction of Thornhill Road and Dalderse Avenue and terminating at a point on the north side of and ten yards or thereabouts from Dalderse Avenue and one hundred and fifty yards or thereabouts measuring in a south-easterly direction from Kersehill House ;
- (4) A Railway No. 4 5·43 chains in length wholly situate in the parish and burgh of Falkirk commencing by a junction with the said Railway No. 2 at a point two hundred and fifty yards or thereabouts measuring in an easterly direction from the junction of Thornhill Road and Dalderse Avenue and terminating at a point on the north side of and five yards or thereabouts from Dalderse Avenue and one hundred and ten yards or thereabouts measuring in a southerly direction from Kersehill House :

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In the county of Fife—

- (5) A widening 3 furlongs 4·10 chains in length of the Company's Dunfermline and Thornton Railway commencing in the parish of Markinch by a junction with the said railway at a point ninety yards or thereabouts measuring along the said railway in an easterly direction from the bridge carrying the public road from Kirkcaldy to Thornton over the said railway and terminating in the parish of Dysart by a junction with the said railway at a point six hundred and sixty yards or thereabouts measuring along the said railway in a westerly direction from the said bridge.

5. Notwithstanding anything in this Act contained or shown on the deposited plans relating to Railway No. 1 the Company shall not enter upon take or use any portion of the properties in the parish of Renfrew numbered on the said plans 2 to 25 both numbers inclusive.

Company not to take certain lands in parish of Renfrew.

6. If the new railways by this Act authorised are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted

Period for completion of new railways.

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A.D. 1905. — to the Company for making and completing such railways or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Penalty imposed unless new railways opened within time limited.

7. If the Company fail within the period limited by this Act to complete the new railways by this Act authorised the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period limited until the uncompleted railway or railways is or are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of such railway or railways and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in the bank and to the credit named in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control Provided that want of sufficient funds shall not be held to be a circumstance beyond their control.

Application of penalty for non-completion of new railways.

8. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the new railways or any of them by this Act authorised or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has

been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit And if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of moneys recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company are insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such judicial factor or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

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9. With respect to tolls rates and charges and for all other purposes whatsoever the railways by this Act authorised shall form part of the Company's undertaking.

Railways to form part of Company's undertaking.

10. For the protection of the corporation of the city of Glasgow as such and as acting in execution of the several public and local and personal Acts by which any powers jurisdictions or authorities are conferred on them (in this section called "the corporation") the following provisions shall (unless otherwise agreed upon) have effect and be binding on the Company (that is to say) :—

For protection of corporation of Glasgow.

- (1) In the event of the Railway No. 1 authorised by this Act necessitating alterations on or additions to any existing bridge or the construction of any new bridge carrying or intended to carry any road or street over the said railway in or over which bridge the water or gas mains or pipes of the corporation are already laid or in or over which bridge the corporation may deem it necessary to lay any new or additional water or gas mains or pipes the Company shall at their own expense be bound to execute such alterations on or additions to any such existing bridge and to provide such suitable accommodation in any such new bridge as to admit of the existing water and gas mains or pipes being maintained in or over such bridge and of any new or additional water or gas mains or pipes which the

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corporation may deem it necessary to provide as aforesaid being laid or maintained in or over the same :

- (2) At least twenty-one days before the Company commence any alterations on any existing bridge or the construction of any new bridge as aforesaid they shall give the corporation notice thereof in writing accompanied by plans sections working drawings and specifications showing the manner in which such works are to be executed and the said plans sections working drawings and specifications shall be subject to the reasonable approval of the corporation previously to such works being commenced and such works shall be executed in conformity with the said plans sections working drawings and specifications as approved of or settled Provided always that if the corporation do not within fourteen days after service of such notice on them intimate to the Company their approval or disapproval of the said plans sections working drawings and specifications the Company may thereupon proceed to execute the said works but the corporation shall not be held to have approved or acquiesced in such plans sections working drawings and specifications :
- (3) The special provisions herein contained for the protection of the corporation shall not be deemed to supersede or dispense with the provisions of sections 16 to 23 both inclusive of the Railways Clauses Consolidation (Scotland) Act 1845 :
- (4) Any difference between the corporation and the Company as to the meaning of this section or arising out of any of the provisions of this section shall be referred to the determination of an arbiter to be mutually agreed upon or failing such agreement to be appointed on the application of the Company or of the corporation by the Board of Trade and the costs of and incidental to the reference shall be paid as the arbiter may determine.

For protection of Caledonian Railway Company.

11.—(1) The Company shall not without the consent of the Caledonian Railway Company (hereinafter called "the Caledonian Company") take compulsorily for the purposes of Railway No. 2 by this Act authorised any portion of the Forth and Clyde Canal

or any other lands or property belonging to the Caledonian Company or alter or interfere with the said canal or property of that Company.

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(2) If in constructing the said Railway No. 2 the Company take interfere with alter or otherwise injuriously affect the portion of the Company's Dalderse Goods and Mineral Dépôt presently allocated and appropriated to and occupied and used by the Caledonian Company the Company shall provide suitable substitute accommodation in said dépôt for the purposes of the traffic of the Caledonian Company.

(3) All running powers rights facilities and privileges which the Caledonian Company possess or are entitled to or may exercise over upon or with reference to the Stirlingshire Midland Junction Railway of the Company shall extend and apply to Railways Nos. 2 3 and 4 by this Act authorised and to any additional branch lines or sidings made in connection therewith subject to the provisions of article 2 of the agreement between the Caledonian Company and the Company confirmed by and scheduled to the Caledonian Railway (No. 1) Act 1884 with regard to the tolls or terms on which such running powers may be exercised by the Caledonian Company.

(4) The several rates powers facilities and provisions by section 57 of the North British Edinburgh Perth and Dundee and West of Fife Railways Amalgamation Act 1862 granted secured and provided in favour of the Caledonian Company and other companies shall extend and apply in all respects to the widening by this Act authorised as if such widening formed part of the railways of the Company north of the Forth at the date of the passing of such Act.

(5) Nothing in this section shall be deemed to impose upon the Postmaster-General the obligation of transmitting under the provisions of the Telegraph Act 1868 or any agreement between the Postmaster-General and the Caledonian Company made in pursuance thereof any larger number of telegraphic messages of the Caledonian Company free of charge than he would have been bound to transmit had this section not become law.

12. For the protection of the county council of the county of Renfrew and the district committee of the First or Upper District of that county (who are in this section included in the expression "the county council") the following provisions shall unless otherwise agreed have effect and be binding on the Com-

For protection of county authorities of Renfrew-shire.

A.D. 1905. — pany in connection with the Railway No. 1 by this Act authorised notwithstanding anything in this Act or the Acts incorporated herewith contained or shown on the deposited plans and sections (that is to say) :—

- (1) The Company shall widen the bridge carrying the Road No. 30 on the deposited plans in the parish of Renfrew and known as the Garscadden Road over the Company's Glasgow Yoker and Clydebank Railway to a width of fifty feet between the parapets and shall construct any bridge or archway which may be required to carry the said road over Railway No. 1 of the like width and shall also widen to a width of fifty feet the road over the said bridges and shall construct the said road to a width of fifty feet southwards from the proposed new bridge with a gradient of one in twenty-eight until such gradient reaches the level of the existing ground. The road as widened and altered shall be constructed in a thoroughly substantial manner with a footpath ten feet wide along the west side thereof and with good and sufficient kerbs gutters gullies and drains to carry off the surface water. The Company's whole operations shall be so carried out as to interfere as little as possible with the traffic on the road :
- (2) The Company shall construct under their existing railway and under the said Railway No. 1 a substantial sewer twenty-four inches in diameter along one side of Garscadden Road at such level as to receive the drainage from Blawarthill Hospital and of a gradient not flatter than one in four hundred. The Company shall also provide proper means of access by man-holes or otherwise for cleansing and repairing such sewer which shall on completion and use be a public sewer. The Company shall in the construction of the said Railway No. 1 protect in a sufficient manner to the reasonable satisfaction of the county council the existing sewer carrying the drainage from Blawarthill Hospital until the drainage from the hospital is being satisfactorily disposed of by the said new sewer and shall provide proper means of access by manholes or otherwise for cleansing and repairing :
- (3) The works of the Company authorised by this Act and referred to in this section and all the works of the

Company connected therewith so far as they interfere with any roads bridges sewers pipes lamps or other works or property belonging to or under the jurisdiction of the county council shall be executed to the reasonable satisfaction of the county council and according to plans sections and specifications to be submitted to and approved by them: A.D. 1905.

- (4) The Company shall pay to the county council the costs and expenses which they may reasonably incur or be put to in superintending and inspecting the works authorised by this Act so far as involving interference with or affecting the roads bridges sewers or other property under the jurisdiction of the county council:
- (5) If any difference shall arise between the county council and the Company under this section the same shall be referred to and determined by an engineer to be agreed on or failing agreement to be appointed by the Board of Trade on the application of the Company or the county council and the cost of such reference shall be borne by the Company unless the arbiter shall otherwise direct on the ground that the claims of the county council in the reference were unreasonable.

13. The agreement between the Company and the provost magistrates and councillors of the burgh of Falkirk set forth in the Second Schedule of this Act is hereby confirmed and made binding on the parties thereto.

Confirming
 scheduled
 agreement
 between Com-
 pany and cor-
 poration of
 Falkirk.

14. For the protection of the provost magistrates and councillors of the burgh of Falkirk (in this section called "the corporation") and for the protection of the Falkirk and Larbert Water Trustees (in this section called "the water trustees") the following provisions respectively shall have effect (that is to say):—

For protec-
 tion of cor-
 poration of
 Falkirk and
 Larbert
 Water
 Trustees.

- (1) The Company shall in the construction of the works by this Act authorised and in carrying out the purposes of this Act make at the expense of the Company suitable and sufficient provision to the reasonable satisfaction of the corporation and the water trustees respectively for the protection of all sewers drains gas electric and water mains and pipes of the corporation and the water trustees respectively and where substituted sewers drains gas electric water mains and pipes are reasonably necessary the Company shall at their own

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expense to the reasonable satisfaction of the corporation or the water trustees as the case may be provide and construct such substituted sewers drains gas electric water mains and pipes :

- (2) The Company shall provide to the reasonable satisfaction of the corporation and the water trustees respectively for their respective interests sufficient and suitable means of access or accesses to all such sewers drains gas electric and water mains and pipes as may be reasonably necessary for the proper and efficient maintenance thereof and for the purposes of repairing examining and relaying such sewers drains gas electric and water mains and pipes :
- (3) The Company shall before altering or interfering with any sewers drains gas electric and water mains and pipes of the corporation and of the water trustees respectively submit plans and sections to them respectively showing any proposed alteration or diversion of the same at least twenty-one days before commencing any works or operations and if the corporation and the water trustees respectively shall not within fourteen days of the receipt of such plans and sections state in writing disapproval of the same the Company shall be entitled to proceed with the works in accordance with the plans and sections so submitted In the event of the corporation or the water trustees as the case may be intimating disapproval of such plans the difference shall be referred to arbitration as hereinafter provided :
- (4) The corporation and the water trustees shall respectively be entitled as and when and so far as necessary to enter upon the railways and works authorised by this Act for the purpose of maintaining examining repairing renewing and relaying and of laying new and additional sewers drains gas electric and water mains and pipes and the Company shall be bound to give to the corporation and the water trustees respectively all reasonable facilities for effecting such purposes :
- (5) Notwithstanding the limits of deviation shown on the deposited plans the Company shall not acquire or interfere with any part of Thornhill Road Dalderse Avenue or the continuation of the said avenue

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numbered 27 17 17 33 on the deposited plans in the parish of Falkirk except so far as may be necessary for the crossing of the said Thornhill Road Dalderse Avenue and continuation thereof by the Railways Nos. 2 3 and 4 authorised by this Act and by the other railways specified in the agreement between the Company and the corporation scheduled to this Act and in accordance with said agreement and in which agreement the said railways are numbered 1 2 3 and 4 and notwithstanding anything to the contrary contained in this Act the Company shall not take or acquire any part of the lands numbered 40 on the deposited plans in the parish of Falkirk except the part of the said lands (not exceeding one acre and a quarter) referred to in the said agreement: A.D. 1905.

- (6) In the event of any dispute arising between the corporation or the water trustees and the Company as to the meaning of this section or otherwise with regard to any matter arising out of this section the same shall be referred to an arbiter to be mutually agreed upon or failing agreement to be appointed by the sheriff of the county of Stirling on the application of either the corporation or the water trustees as the case may be or the Company.

15. Subject to the provisions in the Railways Clauses Consolidation (Scotland) Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of Railways Nos. 2 3 and 4 carry the same with a single line only whilst they shall consist of a single line and afterwards with a double line only across and on the level of the roads next hereinafter mentioned (that is to say):— Power to cross certain roads on the level.

No. of Railway.	No. on deposited Plan.	Parish.	Description of Road.
2	27	Falkirk - -	Street (Thornhill Road).
3 and 4	17	Falkirk - -	Street (Dalderse Avenue).
2	33	Falkirk - -	Private road.

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Inclination
of road.

16. In altering for the purposes of this Act the road next hereinafter mentioned the Company may make the same of any inclination not steeper than the inclination hereinafter mentioned in connection therewith (that is to say) :—

No. of Railway.	No. on deposited Plan.	Parish.	Description of Road.	Intended Inclination.
2	33	Falkirk	Private road - -	1 in 25

Power to
take addi-
tional lands.

17. Subject to the provisions of this Act the Company may enter upon take and use for the general purposes of their undertaking the following lands delineated on the deposited plans and described in the deposited books of reference (that is to say) :—

In the county of Fife—

- (A) Certain lands in the parish of Markinch on the north side of and adjoining the Company's Dunfermline and Thornton Railway to the east of the public road leading from Kirkcaldy to Thornton ;
- (B) Certain lands in the parish of Auchterderran on each side of and adjoining the railway of the Company between Lochgelly and Cardenden near Cardenden Station :

In the county of Edinburgh—

- (c) Certain lands in the parish of Inveresk on the north-west side of and adjoining the Monktonhall Ormiston and Dalkeith Railways of the Company near Smeaton Station.

Power to
take certain
lands in con-
nection with
West High-
land Rail-
way.

18. Subject to the provisions of this Act the Company may for the purposes of their undertaking in connection with the working of the West Highland Railway enter upon take and use certain lands delineated on the deposited plans and described in the deposited books of reference situated in the county of Inverness in the parish of Kilmallie and burgh of Fort William on the south side of and adjoining the West Highland Railway at Fort William Station.

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19. The Company may hold and may use and appropriate for the general purposes of their undertaking the following lands which have been already acquired by them (that is to say):—

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 —
 Company may hold certain lands already acquired.

(1) Certain lands in the parish of Old Kilpatrick in the county of Dumbarton on the north side of and adjoining the Glasgow Dumbarton and Helensburgh Railway of the Company at Bowling Station and situated between that railway and Dumbarton Road:

(2) Certain lands in the parishes of Cramond and Dalmeny in the counties of Edinburgh and Linlithgow on each side of and adjoining the railway of the Company from Edinburgh to Dalmeny near Turnhouse Station:

And the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed. But nothing in this Act shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance having been or being caused or permitted by them upon any lands acquired by them as aforesaid to which this section relates.

20. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 shall not exceed ten acres but nothing in that Act or in this Act shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken.

Lands for extraordinary purposes.

21. The powers of the Company for the compulsory purchase of lands under the powers of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

22. Persons empowered by the Lands Clauses Acts to sell and convey lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Owners may grant servitudes &c.

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Owners may
be required
to sell parts
only of cer-
tain proper-
ties.

23. And whereas in the construction of the railways by this Act authorised or otherwise in exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown on the deposited plans will be sufficient for the purposes of the Company and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore the owners of and persons interested in the properties described in the First Schedule to this Act and whereof portions only are required for the purposes of the Company may (if such portions can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of the said properties without material detriment thereto) be required to sell and convey to the Company the portions only of the properties so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other persons interested therein by severance or otherwise.

If for twenty-one days after the service of notice to treat for any portion or portions of any such property any owner or other person interested shall fail to notify to the Company that he alleges that such portion or portions cannot be severed from the remainder of the property without causing the material detriment mentioned then the Company may proceed to take such portion or portions only but if within such twenty-one days he shall by notice to the Company allege that such portion or portions cannot be severed from the remainder without causing such material detriment as aforesaid then the tribunal to whom the question of disputed compensation shall be submitted shall determine the matter of the said allegation in addition to the other questions required to be determined by them Provided always that if in the opinion of the said tribunal such portion or portions cannot be severed from the remainder of such property without such material detriment the Company may withdraw their notice to treat for the portion or portions of the property required by them and thereupon they shall pay to the owner of or other person interested in such property all costs charges and expenses reasonably and properly incurred by such owner or other person in consequence of such notice Provided also that if in the opinion of such tribunal such portion or portions can

notwithstanding the allegation of such owner or other person be severed from the remainder without such material detriment then such tribunal may in their absolute discretion determine and order that the costs charges and expenses incurred by such owner or other person incident to the arbitration or inquiry shall be borne and paid by such owner or other person The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Acts contained The provisions of this section shall be stated in every notice to treat given thereunder by the Company.

A.D. 1905.

24. The powers granted to the Company by the North British Railway (General Powers) Act 1900 as extended and continued by the North British Railway (General Powers) Order Confirmation Act 1903 for the compulsory purchase of lands for the purposes of the railways numbers 1 2 3A 4A 5A 6A and 7 and works by the first-mentioned Act authorised are hereby further extended and continued and may be exercised by the Company for a further period of two years from the sixth day of August one thousand nine hundred and five and on the expiration of that period those powers shall cease.

Further extension of time for purchase of lands for certain railways and works authorised by North British Railway (General Powers) Act 1900.

25. The powers granted to the Company by the North British Railway (General Powers) Act 1900 for the completion of the railways numbers 1 2 3A 4A 5A 6A and 7 by that Act authorised as extended and continued by the North British Railway (General Powers) Order Confirmation Act 1903 are hereby further extended and continued and may be exercised by the Company for a further period of three years from the sixth day of August one thousand nine hundred and eight and sections 7 and 8 of the said Act of 1900 shall be read and construed as if the period further extended and limited by this Act had been the period limited by that Act for the completion of the said railways and works If the said railways be not completed within the said further extended period then on the expiration of that period the powers of making and completing the same and otherwise in relation thereto shall cease except as to so much of the said railways as shall then be completed.

Further extension of time for completion of certain railways authorised by North British Railway (General Powers) Act 1900.

26. The powers granted to the Company by the North British Railway (General Powers) Act 1902 for the compulsory purchase of certain lands for the purposes of their undertaking described in subsection (A) of section 5 of that Act are hereby extended and may be exercised by the Company for a further period of two years from the twenty-second day of July one

Extension of time for purchase of certain lands described in subsection (A) of section 5 of

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Act, 1905.*

A.D. 1905. thousand nine hundred and five and on the expiration of that
period those powers shall cease.

North Bri-
tish Railway
(General
Powers) Act
1902.

The lands hereinbefore referred to are as follows:—

Certain lands in the city and Royal burgh of Edinburgh
in the city parish of Edinburgh in the county of the
city of Edinburgh on the west side of and adjoining
Gorgie Station of the Company.

Restrictions
on displacing
persons of
labouring
class.

27.—(1) The Company shall not under the powers of this
Act or under the powers of any former Act or Order extended by
this Act purchase or acquire in any district within the meaning
of the Public Health (Scotland) Act 1897 ten or more houses
which on the fifteenth day of December next before the passing of
this Act or of the former Act or Order by which such purchase
or acquisition was originally authorised (as the case may be) were
occupied either wholly or partially by persons belonging to the
labouring class as tenants or lodgers or have been or shall be
subsequently so occupied unless and until—

(A) They shall have obtained the approval of the Secretary
for Scotland to a scheme for providing new dwellings
for such number of persons as were residing in such
houses on the fifteenth day of December aforesaid
or for such number of persons as the Secretary for
Scotland shall after inquiry deem necessary having
regard to the number of persons on or after that date
residing in such houses and working within one mile
therefrom and to the amount of vacant suitable accom-
modation in the immediate neighbourhood of such
houses or to the place of employment of such persons
and to all the circumstances of the case; and

(B) They shall have given security to the satisfaction of
the Secretary for Scotland for the carrying out of
the scheme.

(2) The approval of the Secretary for Scotland to any scheme
under this section may be given either absolutely or conditionally
and after the Secretary for Scotland has approved of any such
scheme he may from time to time approve either absolutely or
conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions
prescribing the time within which it shall be carried out and
shall require the new dwellings proposed to be provided under

the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced: A.D. 1905.

Provided that the Secretary for Scotland may dispense with the last-mentioned requirement subject to such conditions (if any) as he may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Secretary for Scotland may have approved of any such scheme or of any modifications of any such scheme or subject to which he may have dispensed with the above-mentioned requirement shall be enforceable by an order of the court of session to be obtained by the Secretary for Scotland.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the court of session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase section 145 of the Public Health (Scotland) Act 1897 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of that Act and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or under any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise let or otherwise dispose of such dwellings and any lands purchased or acquired

A.D. 1905. — as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings by the Company shall contain proper covenants for securing that the buildings on such lands shall during such period of twenty-five years be used exclusively for the purpose of such dwellings and shall be endorsed with notice of this enactment :

Provided also that the Secretary for Scotland may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as he may see fit.

(8) The Secretary for Scotland may direct any inquiries to be held which he may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and he and any person appointed by him to hold inquiry shall have and may exercise for any purpose in connection with any scheme under this section all or any of the powers vested in them respectively under the Public Health (Scotland) Act 1897 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act.

(9) The Company shall pay to the Secretary for Scotland a sum to be fixed by him in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by him in relation to any inquiries under this section including the expenses of any witnesses summoned by the person appointed to hold any such inquiry and a sum to be fixed by the Secretary for Scotland not exceeding three guineas a day for the services of the person so appointed.

(10) Any houses purchased or acquired by the Company for or in connection with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act and for which

houses no substitutes have been or are directed to be provided by any scheme approved by the Secretary for Scotland under any previous Act or Order relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Secretary for Scotland is unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Secretary for Scotland they might have been sufficient to accommodate. A.D. 1905.

(11) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

28.—(A) All rights powers and privileges which the North Eastern Railway Company and the Great Northern Railway Company possess or are entitled to or may exercise over upon or with reference to the Dunfermline and Thornton Branch Railway of the Company east of Cowdenbeath Junction shall extend and apply to the Widening No. 5 by this Act authorised. Extension of running powers and facilities of North Eastern and Great Northern Railway Companies.

(B) All rights powers and privileges which the North Eastern Railway Company and the Great Northern Railway Company possess or are entitled to or may exercise over upon or with reference to the Glasgow Yoker and Clydebank Railway of the Company shall extend and apply to the Railway No. 1 by this Act authorised.

29. The conveyances contained in the contract of excambion between the Company and the provost magistrates and councillors of the burgh of Bathgate exchanging certain two portions of land in Engine Street at or near Bathgate Upper Station in the said burgh extending each to .014 acre or thereabouts and the conveyances contained in the contract of excambion between the Company and Alexander Cochran of Ashkirk by which he Confirming certain contracts of excambion of lands at Bathgate and at Wallyford in parish of Inveresk.

A.D. 1905. — exchanged certain lands at or near Wallyford level crossing in the parish of Inveresk and county of Edinburgh extending respectively to thirty-six square yards or thereabouts forty square yards or thereabouts and fifty-three square yards or thereabouts and renounced all interest in twelve square yards or thereabouts of land and ninety square yards or thereabouts of land at the said level crossing and that for certain lands at or near the said level crossing extending to forty-two square yards or thereabouts eight square yards or thereabouts and eighty-six and one-half square yards or thereabouts owned by the Company are hereby respectively sanctioned and confirmed.

Power to
Burntisland
Commis-
sioners to
borrow addi-
tional money.

30. The Burntisland Commissioners may from time to time in addition to the money already borrowed or authorised to be borrowed by them for the purposes of their harbour undertaking borrow on mortgage or on cash credit or otherwise as may be deemed expedient such money as may be required for carrying into effect the purposes of the Burntisland Harbour Acts not exceeding in the whole the sum of sixty thousand pounds on the security of their harbour revenues and the rates authorised by the Burntisland Harbour Acts and shall apply any moneys so borrowed in the first place in payment of their outstanding expenditure on capital account at thirtieth September one thousand nine hundred and four amounting to forty-nine thousand three hundred and twenty-nine pounds thirteen shillings and fourpence.

Extending
certain pro-
visions of
Burntisland
Harbour Act
1881 to
money bor-
rowed under
this Act.

31. The provisions contained in sections 66 67 and 68 of the Burntisland Harbour Act 1881 shall extend and apply to the money by this Act authorised to be borrowed by the Burntisland Commissioners as if such money had formed part of the money authorised to be borrowed by the Burntisland Commissioners under the powers contained in the said Act of 1881.

Saving exist-
ing securi-
ties.

32. Nothing in this Act contained shall be held or construed to alter affect or diminish any mortgage or assignment or other security granted for money borrowed under the Burntisland Harbour Acts and which shall be subsisting at the passing of this Act and all such mortgages or assignments or other securities shall remain as valid and sufficient in favour of the holders thereof as if this Act had not been passed.

Power to
Company to
lend addi-
tional

33. The Company may from time to time on an application made to them by the Burntisland Commissioners in writing under the hand of their clerk and delivered to the secretary of the

Company lend to the Burntisland Commissioners on mortgage on the security of the rates dues and duties leviable by them and of the other revenues of the Burntisland Commissioners and on the like terms and conditions as the money heretofore borrowed by the town council and the Burntisland Commissioners has been lent by the Company any sums of money in addition to the money already authorised to be lent by the Company to the town council and the Burntisland Commissioners under the Burntisland Harbour Acts such sums of money not exceeding in the whole forty thousand pounds as the Burntisland Commissioners may require for carrying into effect the purposes of the Burntisland Harbour Acts and any other general purposes of the harbour.

A.D. 1905.

money to
Burntisland
Commis-
sioners.

34. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue at their option of ordinary shares or stock or new preference shares or stock or new preference shares or stock convertible into ordinary preference stock and ordinary stock or wholly or partially by one or more of those modes respectively any additional capital not exceeding in the whole with respect to any advances made by them to the Burntisland Commissioners under this Act the sum of forty thousand pounds but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

Company
may raise
additional
capital for
purposes of
Burntisland
Harbour

35. Instead of raising the sum of forty thousand pounds by this Act authorised to be advanced on loan to the Burntisland Commissioners by the creation under this Act of shares or stock the Company may if they think fit apply for the purposes of any such loan any of their existing or authorised funds or may raise the said sum or any part thereof by assigning the mortgages received by the Company from the Burntisland Commissioners or by granting mortgages or bonds on or over the harbour and dock revenues payable to the Company under the fifth article of the agreement referred to in the Burntisland Harbour Act 1881 and the Burntisland Harbour Act 1896 as "the agreement of 1872" and under those Acts and this Act in like manner as they are by the North British Railway Act 1873 the North British Railway Act 1875 the North British Railway (Additional Works and Powers) Act 1877 the Burntisland Harbour Act 1881 the

Company
may apply
existing or
authorised
funds for
purposes of
loan to Burnt-
island Com-
missioners.

A.D. 1905. Burntisland Harbour Act 1896 and the North British Railway (General Powers) Act 1900 collectively authorised to raise the sum of six hundred and twenty thousand pounds and as if the total amount by those Acts authorised to be raised were six hundred and sixty thousand pounds instead of six hundred and twenty thousand pounds.

Repeal of
section 74 of
North Bri-
tish Railway
(General
Powers) Act
1900 and
substitution
of other
powers.

36. Section 74 of the North British Railway (General Powers) Act 1900 is hereby repealed and the rates dues and duties to be levied by the Burntisland Commissioners and their other harbour revenues shall until the principal sums lent by the Company to the Burntisland Commissioners together with interest thereon shall have been repaid to the Company be applied as follows:—

- (1) In maintaining working and managing the harbour as defined by the Burntisland Harbour Act 1896 and works connected therewith and in dredging and cleansing the harbour and the accesses and entrances thereto and the other necessary expenses of the Burntisland Commissioners including such expenses of working and maintaining the harbour and incident thereto as may have been incurred but not paid before the passing of this Act:
- (2) In paying the annual feu duty to the town council payable by the Burntisland Commissioners:
- (3) In paying interest on money borrowed by the town council and the Burntisland Commissioners from the Company under the authority of the Burntisland Harbour Acts and on money borrowed by the Burntisland Commissioners under the authority of this Act:
- (4) In paying any sums which may be required to be set aside as a sinking fund for the payment of the money already borrowed or which may be borrowed by the Burntisland Commissioners:
- (5) Any surplus which may remain after paying or applying to the purposes aforesaid shall be applied in improving deepening and extending the harbour and works connected therewith or in reducing the rates dues duties and charges leviable in respect thereof.

37. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or new preference shares or stock convertible into ordinary preference stock and ordinary stock or wholly or partially by one or more of those modes respectively any additional capital not exceeding in the whole one hundred thousand pounds but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

A.D. 1905.

Power for Company to raise additional capital by shares or stock.

38. All preference shares or stock convertible into ordinary preference stock and ordinary stock created and issued under the provisions of this Act or any Act or Order relating to the Company may by agreement with the holders thereof be converted on the same terms and subject to the like conditions as all preference shares or stock convertible into ordinary preference stock and ordinary stock authorised to be created and issued under the North British Railway Act 1888.

Extending provisions of North British Railway Act 1888 to preference stock convertible into ordinary stock.

39. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

Except as otherwise provided new shares or stock to be subject to same incidents as present shares or stock.

The capital in new shares or stock so created shall form part of the capital of the Company.

40. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

Dividends on new shares or stock.

41. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restriction as to votes in respect of preference shares or stock.

A.D. 1905.

New shares
or stock
raised under
this Act and
any other
Act or Order
of past or
present ses-
sions may be
of same class.

42. Subject to the provisions of any Act or Order already passed or confirmed by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Act and any other Act or Order passed or confirmed in the present session of Parliament whether before or after the passing of this Act by which the Company may be authorised to raise capital by new shares or stock the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act or Order and this Act respectively authorised to raise by the creation and issue of new shares or stock.

Calls.

43. Twenty per centum on the amount of any share shall be the greatest amount of any call which may be made thereon and there shall be an interval of not less than three months between any two successive calls and the Company shall not call up more than three fourths of a share in any year.

Power to
borrow.

44. The Company may in respect of the additional capital of one hundred thousand pounds which they are by this Act authorised to raise from time to time borrow on mortgage of the undertaking any sum not exceeding in the whole thirty-three thousand three hundred pounds but no part thereof shall be borrowed until shares for so much of the said additional capital as is to be raised by means of shares are issued and accepted and one half of such capital is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one half of such capital has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of so much of the said additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such sheriff as aforesaid before he so certifies that such shares or stock (as the case may be) were issued and accepted and to the extent aforesaid paid up bonâ fide and are held by the persons or corporations to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or corporations or their executors administrators successors or assigns are legally liable for the same and upon production to such sheriff of the books of the Company and of such other

evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. A.D. 1905.

45. The provisions of the North British Railway (General Powers) Order 1904 authorising the appointment of a receiver or judicial factor for principal or interest moneys due upon any mortgage of the Company are hereby repealed but subject and without prejudice to any appointment of a receiver or judicial factor or proceedings taken under or by virtue of such provisions and in force or pending at the time of the passing of this Act. Provisions of Order of 1904 as to appointment of a receiver or judicial factor repealed.

46. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole. For appointment of a judicial factor.

47. All mortgages granted by the Company in pursuance of the powers of any Act or Order before the passing of this Act and subsisting at the passing thereof shall during the continuance of such mortgages and as regards the undertaking comprised in and assigned by such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over all mortgages to be granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Existing mortgages to have priority.

48. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 The interest of all debenture stock of the Company at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages. Company may create debenture stock.

49. All moneys raised by the Company under this Act whether by shares or stock or debenture stock or by borrowing shall be applied only to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable. Application of moneys raised under Act.

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Company
may apply
corporate
funds.

50. The Company may from time to time apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts or Orders and which are not required for the purposes to which they are by those Acts or Orders made specially applicable.

Interest not
to be paid
out of capi-
tal.

51. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Act or any Act or Order authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

Deposits for
future Orders
or Bills not
to be paid
out of capi-
tal.

52. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any general order for the regulation of proceedings under the Private Legislation Procedure (Scotland) Act 1899 or any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to the Secretary for Scotland for a Provisional Order or to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as
to general
Railway
Acts.

53. Nothing in this Act contained shall exempt the Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the date of passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company under any of their Acts or Orders.

Costs of Act.

54. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1905.

THE FIRST SCHEDULE.

DESCRIBING LANDS BUILDINGS AND MANUFACTORIES OF WHICH
PORTIONS MAY BE TAKEN WITHOUT TAKING THE WHOLE.

Parish.	Numbers on deposited Plans.
RAILWAY No. 2.	
Falkirk - - -	- 28 29 30 31 32 33 34 35 42 44 45 48 49.
RAILWAYS Nos. 3 AND 4.	
Falkirk - - -	- 30 31 32 51 52 53 54 55.
WIDENING OF DUNFERMLINE AND THORNTON RAILWAY.	
Markinch - - -	- 17.
LANDS TO BE ACQUIRED AT THORNTON.	
Markinch - - -	- 2 3 5.

THE SECOND SCHEDULE.

AGREEMENT between the NORTH BRITISH RAILWAY COMPANY
incorporated by Act of Parliament (hereinafter called "the
Company") on the one part and the PROVOST MAGISTRATES
AND COUNCILLORS OF THE BURGH OF FALKIRK (hereinafter
called "the town council") on the other part.

The parties hereto hereby agree as follows (videlicet):—

First The Company shall be entitled to make and maintain in per-
petuity (a) the Railway No. 1 as delineated and coloured red on the plan
subscribed as relative hereto crossing Thornhill Road Falkirk on the level

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A.D. 1905. --- (b) the Railway No. 2 delineated and coloured green on the said plan crossing Dalderse Avenue on the level (c) the Railway No. 3 delineated and coloured brown on the said plan crossing Dalderse Avenue on the level and (d) the Railway No. 4 delineated and coloured yellow on the said plan But declaring that the right to make and maintain the said railways shall be subject to the Company implementing the whole terms of this agreement and paying to the town council the sum of one pound one shilling per annum as wayleave for the said level crossings And declaring further that power is reserved to the town council or their nominee or nominees at any time to lay tramway rails over the said railways at said level crossings and that the Company shall be bound and obliged to lay their rails in such a manner as to enable the town council or their nominee or nominees to lay such tramway rails The said railways shall consist of single line only in so far as they are laid on Thornhill Road and Dalderse Avenue respectively The said Railway No. 2 to the works of the Falkirk Iron Company shall as far as practicable be used only for raw material and for taking out of said works such castings as can be carried in the wagons taking in said raw material.

Second The said level crossings shall not be used in the marshalling of trains and no engine or wagon shall be allowed to stand on them between the building lines of the said Thornhill Road and Dalderse Avenue (that is to say) the said level crossings are to be used only in conjunction with the railways on either side of them for the passing of traffic directly to or from either side of them and under no circumstances whatever shall they be used for the purpose of marshalling trains or for the subdivision of or the making up of trains and they shall be so worked that vehicular traffic shall not at either of said level crossings be interrupted for a longer period than is absolutely necessary for the passing of trains and in no case shall said traffic be interrupted for a longer period than eight minutes at any one time Declaring that at least a period of fifteen minutes shall elapse between each period of eight minutes during which vehicular traffic may be so interrupted.

Third The said level crossings shall not without the consent of the town council in writing be used for traffic arising or terminating on any extension of the said Railways Nos. 1 and 4 east of the longitudinal line drawn north and south through the point of termination of Railway No. 3A authorised by the North British Railway (General Powers) Act 1900 and described in that Act.

Fourth The town council shall be entitled at their own expense and subject to the usual regulations and conditions of the Company with reference to private sidings to two sidings from or in continuation of the Railway No. 1 or sidings in connection therewith at or near the points marked A and B respectively on said plan to serve the field or area bounded by yellow lines and marked on the said plan "Proposed Gas Works Feu."

Fifth The Company shall be bound to have the said railways completed and open for traffic not later than twelve months from the date they get possession of all the lands required therefor and they shall use due diligence in endeavouring to get possession of the lands as early as possible and which lands the said railway company shall be bound to acquire at their own expense. If it should become necessary for the Company to apply for Parliamentary powers to acquire the lands they shall make such application in their first Provisional Order or Bill and they shall within twelve months after the Royal Assent has been given to the Order or the substituted Bill authorising the acquisition of the lands have the railways completed and opened for traffic. The town council shall if required by and at the expense of the Company support any application the Company may make for such Parliamentary powers but declaring that the Company shall not be entitled to remove or interfere with the existing level crossing in Dalderse Avenue or to proceed with the construction of the new level crossing in Thornhill Road and in said avenue until they are in a position to proceed with the whole works necessary in connection with the said railways.

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Sixth The town council shall convey to the Company so much of the lands (but not exceeding one and a quarter acres in all) owned by them or any one on their behalf or which they or any one on their behalf may acquire as is necessary for the making of the railways and sidings shown on the said plan and that for the same price per acre as the town council paid therefor.

Seventh The Company shall causeway the portion of said Thornhill Road and Dalderse Avenue and footpaths between the rails of the said level crossings and for eighteen inches outside these rails and make provision for the drainage thereof and shall maintain the said causeway footpaths and level crossings in all time coming all to the reasonable satisfaction of the town council.

Eighth The Company shall make at the time of making the level crossing of Thornhill Road and maintain in all time coming to the reasonable satisfaction of the town council a ramp footbridge of six feet in width at the said level crossing and that on their own ground so as not to interfere with obstruct or contract the present width of said Thornhill Road and pavements.

Ninth The Company shall erect and maintain in all time coming to the reasonable satisfaction of the town council suitable gates with sufficient locks at the said level crossings. These gates shall be erected so that when closed against the railways they shall not at any point project beyond the building lines of the said road and avenue and they shall be kept closed across the railways except when the railways are being used by the Company and the Company shall provide and maintain in all time coming to the reasonable satisfaction of the town council at least one suitable lamp on each of the said gates which lamps the Company shall keep burning brightly when the said crossings respectively are being used between sunset and sunrise. When the

A.D. 1905. — railways are being so worked as to necessitate the use of the level crossings the Company shall have a gatekeeper or other person with a red flag at the level crossings so as to stop the street traffic when trains are about to cross the level crossings and when between sunset and sunrise a train is passing over the said level crossings a gatekeeper or other person shall stand on the carriageway at each side of the level crossings displaying a red light Further the Company shall be responsible for the proper working of the said level crossings and for all loss damage and expense incurred in connection with or in consequence thereof and shall relieve the town council of all liability of every kind in connection therewith.

Tenth Immediately on the opening for traffic of the said level crossings the Company shall discontinue and remove the existing level crossing of Dalderse Avenue delineated and hatched blue on the said plan and shall restore the said avenue and foot pavements to the reasonable satisfaction of the town council.

Eleventh In the event of any dispute arising between the parties as to the meaning of this agreement or any part thereof or in the carrying out of the same or the works hereby authorised and the parties failing to agree with respect thereto the points in difference shall be referred to an arbiter to be mutually agreed on or failing agreement to be appointed by the sheriff of the county of Stirling on the application of either party and the agreement will be carried out and the works executed as directed by such arbiter and in the event of the Company or the town council at any time contravening this agreement or any part thereof the said arbiter shall have power to award damages and expenses or either of them against the Company in favour of the town council or against the town council in favour of the Company as the case may be and which damages and expenses the Company or the town council as the case may be shall be bound to pay as directed by the said arbiter and that without any legal proceedings and the decision of said arbiter in all matters remitted to him shall be final.

Twelfth The agreement entered into between the parties hereto dated fifth and sixteenth June nineteen hundred and two is hereby cancelled.

Thirteenth This agreement is made subject to such alterations as Parliament may think fit to make therein.

In witness whereof these presents consisting of this and the seven preceding pages and the relative plan are executed in duplicate as follows (videlicet) They are sealed with the common seal of the town council of Falkirk and are subscribed by John Weir provost and James Russel Welsh Ferguson depute town clerk at Falkirk on the fifth day of August nineteen hundred and four before these witnesses Thomas Mackie journalist Griffiths Street Falkirk and William McCrae gas manager there and they are sealed with the common seal of the Company and are subscribed by Henry Torrens Anstruther and Andrew Kirkwood McCosh two of their directors and John Cathles their secretary all at Edinburgh on the twenty-fifth day of said month and year last mentioned before these witnesses

[5 EDW. 7.] *North British Railway (General Powers)* [Ch. clvii.]
Act, 1905.

John Martin their assistant secretary and Thomas Henry Short clerk in A.D. 1905.
their Head Office Edinburgh.

H. T. ANSTRUTHER Director.
AND. K. McCOSH Director.

JNO. CATHLES

Secy. N.B. Rly. Co.

J. MARTIN Witness.

THOS. H. SHORT Witness.

JOHN WEIR Chairman.

J. R. W. FERGUSON

Dep. Town Clerk.

THOMAS MACKIE Witness.

WILLIAM McCRAE Witness.

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